

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4075

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

COMMITTEE SUBSTITUTE

An Act relating to Oklahoma Water Resources Board;
making appropriations; identifying source;
establishing amounts; providing purposes; identifying
funds appropriated to the Oklahoma Water Resources
Board; authorizing the Oklahoma Water Resources Board
to transfer and allocate between projects as needed
for certain purposes; requiring and limiting the
utilization of funds; creating certain special
accounts; limiting duration of accounts; requiring
certain determination; providing and limiting the
nature of the accounts and the funds within the
accounts; authorizing agency to submit request for
certain deposits or transfers; requiring certain
compliance and verifications; authorizing certain
memorandums of understanding; limiting scope;
prohibiting certain memoranda terms; authorizing and
limiting the promulgation of rules and utilization of
procedures; requiring certain reports and submissions
to certain entities; requiring appearance before
certain joint committee; limiting duration of certain
requirements; providing for noncodification; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 There is hereby appropriated to the Oklahoma Water Resources
4 Board from any monies not otherwise appropriated from the Statewide
5 Recovery Fund established in Section 255 of the Title 68 of the
6 Oklahoma Statutes, the sum of Twenty-five Million Nine Hundred
7 Ninety-eight Thousand Seven Hundred Ninety-eight Dollars
8 (\$25,998,798.00) or so much thereof as may be necessary to complete
9 ongoing projects that have received prior appropriations from the
10 Statewide Recovery Fund or to target statewide strategic water
11 infrastructure projects. Such funds shall be utilized in a manner
12 consistent with the recommendations adopted by the Joint Committee
13 on Pandemic Relief Funding on April 15, 2026.

14 SECTION 2. NEW LAW A new section of law not to be
15 codified in the Oklahoma Statutes reads as follows:

16 Of the funds appropriated to the Oklahoma Water Resources Board
17 pursuant to:

18 1. Enrolled Senate Bill No. 429 of the 2nd Regular Session of
19 the 58th Oklahoma Legislature;

20 2. Enrolled Senate Bill No. 42 of the 2nd Regular Session of
21 the 58th Oklahoma Legislature;

22 3. Enrolled Senate Bill No. 4 of the 2nd Extraordinary Session
23 of the 58th Oklahoma Legislature;

1 4. Enrolled Senate Bill No. 13 of the 2nd Extraordinary Session
2 of the 58th Oklahoma Legislature;

3 5. Enrolled House Bill No. 2942 of the 1st Regular Session of
4 59th Oklahoma Legislature;

5 6. Enrolled House Bill No. 2937 of the 2nd Regular Session of
6 the 59th Oklahoma Legislature; and

7 7. Enrolled House Bill No. 2789 of the 1st Regular Session of
8 the 60th Oklahoma Legislature;

9 the Oklahoma Water Resources Board is hereby authorized to transfer
10 and allocate amounts between such projects as needed in order to
11 complete any such project and purpose listed in measures described
12 in paragraphs 1, 2, 3, 4, 5, 6, and 7 of this section.

13 SECTION 3. NEW LAW A new section of law not to be
14 codified in the Oklahoma Statutes reads as follows:

15 A. There is hereby created in the State Treasury a Statewide
16 Recovery Special Account for the Oklahoma Water Resources Board for
17 each appropriation section of this act. The duration of such
18 accounts shall continue for the period of time that monies related
19 to the American Rescue Plan Act of 2021 are being budgeted,
20 expended, or managed in the state. The ending of such period shall
21 be determined by the State Treasurer, and shall result in the
22 closing of such accounts as a matter of law. Such accounts shall be
23 continuing accounts as otherwise provided in this section, not
24 subject to fiscal year limitations, and shall exclusively consist of

1 monies related to the relevant appropriations made in this act and
2 as otherwise directed by law. All monies deposited to the credit of
3 such accounts are hereby appropriated and may be budgeted and
4 expended by the Oklahoma Water Resources Board in accordance with
5 the provisions of this act. Expenditures from such accounts shall
6 be made upon warrants issued by the State Treasurer against claims
7 filed as prescribed by law with the Director of the Office of
8 Management and Enterprise Services for approval and payment.

9 B. The Oklahoma Water Resources Board is authorized to request
10 in writing that the monies appropriated by the provisions of this
11 act be deposited or transferred to the accounts created pursuant to
12 subsection A of this section. No later than seven (7) calendar days
13 from the date of such request, the Director of the Office of
14 Management and Enterprise Services shall comply with such request
15 and verify to the requesting agency that such deposit or transfer
16 has been completed.

17 SECTION 4. NEW LAW A new section of law not to be
18 codified in the Oklahoma Statutes reads as follows:

19 The Oklahoma Water Resources Board may enter into memorandums of
20 understanding with other agencies of the State of Oklahoma for the
21 auditing, documentation, evaluation, implementation, oversight,
22 reporting, and management of funds and associated efforts related to
23 the appropriations made in this act; provided, that no such
24 memorandum of understanding shall require or include, as an option

1 or condition, the direct or practical transfer or relinquishment of
2 control by the agency appropriated such funds to budget, expend,
3 allocate, and request the distribution of the funds appropriated by
4 this act.

5 SECTION 5. NEW LAW A new section of law not to be
6 codified in the Oklahoma Statutes reads as follows:

7 The Oklahoma Water Resources Board may promulgate rules, utilize
8 existing rules, establish procedures, and utilize existing
9 procedures to implement the provisions of this act; provided, such
10 rules and procedures do not conflict with or impede the provisions
11 of this act.

12 SECTION 6. NEW LAW A new section of law not to be
13 codified in the Oklahoma Statutes reads as follows:

14 The Oklahoma Water Resources Board is authorized to enter into
15 contracts with financial institutions and execute such instruments
16 as may be necessary and convenient to hold and disseminate grant
17 funds in accordance with applicable federal and state regulations
18 and Board policies.

19 SECTION 7. NEW LAW A new section of law not to be
20 codified in the Oklahoma Statutes reads as follows:

21 A. The Oklahoma Water Resources Board shall:

22 1. Submit to the Chairs of the Joint Committee on Pandemic
23 Relief Funding, or any successor Senate legislative or House of
24 Representatives legislative committee or joint committee, as

1 designated by the President Pro Tempore of the Senate and the
2 Speaker of the House of Representatives:

- 3 a. a written or electronic quarterly report detailing the
4 budgeting, expenditure, and management of all monies
5 appropriated in this act, and
- 6 b. a copy of all memorandums of understanding and
7 contracts with third parties entered into by the
8 Oklahoma Water Resources Board to facilitate, assist,
9 or administer powers and duties provided to the
10 Oklahoma Water Resources Board under the provisions of
11 this act; and

12 2. At the Joint Committee on Pandemic Relief Funding's request,
13 appear before the Joint Committee no later than six (6) months after
14 the effective date of this act, and as otherwise requested by the
15 Joint Committee to provide a status update regarding the
16 implementation of the provisions of this act.

17 B. The provisions of subsection A of this section shall remain
18 applicable for the period of time that monies appropriated under
19 this act are being budgeted, expended, or managed in the state. The
20 ending of such period shall be determined by the State Treasurer,
21 and shall be reported to the Governor, President Pro Tempore of the
22 Senate and the Speaker of the House of Representatives.

23 SECTION 8. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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